

of disclaimer (*g*); but a person would act very imprudently, who allowed so important a question as whether he is a trustee or not to remain matter of construction.

9. **After disclaimer, the trustee may act as agent to the trust.**—After renunciation of the trust, whether by express disclaimer, or by conduct which is tantamount to it, a trustee may assist as agent, or act under a letter of attorney, in the management of the estate without incurring responsibility (*h*); but the caution need scarcely be suggested, that all such interference cannot be too scrupulously avoided before the fact of the renunciation of the trust has been most unquestionably established; and where the person named as trustee is to receive a profit from his agency, this naturally excites a suspicion in the mind of the Court (*i*).

10. **How estate divested from the trustee.**—On a grant or other conveyance to a trustee, though upon onerous trusts, the estate passes to him without any express assent but subject to the right of dissenting (*j*), and what will amount to a disclaimer *at law*, so as to *divest the estate*, is a distinct question from the disclaimer of the *office* in equity.

Freeholds may be disclaimed by deed.—It was formerly held (at least such was the clear opinion of Lord [*199] *Coke), that a *freehold*, whether vested in a person by feoffment, grant (*a*), or devise (*b*), could not be disclaimed but by *matter of record*; and the reason upon which this maxim was founded, was that the suitor might be more certainly apprised who was the tenant to the *præcipe* (*c*). But the doctrine of modern times is, that disclaimer by mat-

(*g*) *Stacey v. Elph*, 1 M. & K. 195; *White v. M'Dermott*, 7 I. R. C. L. 1.

(*h*) *Dove v. Everard*, 1 R. & M. 231; *Harrison v. Graham*, 3 Hill's MSS. 239, cited 1 P. W. 241, 6th ed. note (*g*); *Stacey v. Elph*, 1 M. & K. 195; *Lowry v. Fulton*, 9 Sim. 104; *Montgomery v. Johnson*, 11 Ir. Eq. Rep. 480.

(*i*) *Montgomery v. Johnson*, 11 Ir. Eq. Rep. 481.

(*j*) *Siggers v. Evans*, 5 Ell. & Bl. 380.

(*a*) *Butler and Baker's case*, 3 Rep. 26 a, 27 a; *Anon. case*, 4 Leon. 207; *Shepp. Touch.* 285.

(*b*) *Bonifant v. Greenfield*, Godb. 79, *per* Lord Coke; but at the re-hearing (Cr. Eliz. 80) it was adjudged that three could pass the whole estate, the fourth having disclaimed by act *in pais*; and see *Shepp. Touch.* 452.

(*c*) *Butler and Baker's case*, 3 Rep. 26, b.